



Embassy of the United States of America

U.S. Embassy PARIS

April 14, 2026

Dear Prospective Offeror:

SUBJECT: Request for Quotes 19FR6326Q0063.

Enclosed is a Request for Quotes (RFQ) for **Logistical Support Services to the U.S. Mission in France**. If you would like to submit quotation, follow the instructions in Section 3 of the solicitation, complete the required portions of the attached document, and submit it to the address shown on Standard Form 1449 that follows this letter.

The U.S. Government intends to award a contract/purchase order to the responsible company submitting an acceptable offer at the lowest price. We intend to award a contract/purchase order based on initial quotations, without holding discussions, although we may hold discussions with companies in the competitive range if there is a need to do so.

The Embassy intends to conduct a pre-proposal conference **on April 21, 2026, at 11:00 CET**. Prospective offerors/quoters should contact **B Bolognani, pariscontracting@state.gov** by **April 17, 2026, at 17:00 CET** for additional information or to arrange entry to the building.

Quotations are due by **May 18, 2026, at 17:00 CET**. No quotations will be accepted after this time. Proposals must be in English and incomplete proposals will not be accepted.

Your quotation must be submitted electronically to Pariscontracting@state.gov. It is important to make sure the submission is made in specific size and format; in MS-Word 2007/2010 or MS-Excel 2007/2010 or Adobe Acrobat (pdf) file format. The file size must not exceed 30MB. If the file size should exceed the 30MB, the submission must be made in separate files and attached to separate emails with less than 30MB each.

In order for a quotation to be considered, you must also complete and submit the following:

1. SF-1449
2. Section 1, Pricing
3. Section 5 Representations and Certifications
4. Additional information as required in Section 3
5. Proof of SAM Registration

Offerors shall be registered in the SAM (System for Award Management) database at <https://www.sam.gov> prior to submittal of their offer/proposal as prescribed under FAR 4.1102. Failure to be registered at time of proposal submission may deem the offeror's proposal to be considered non-responsible and no further consideration will be given. Therefore, offerors are highly encouraged to register immediately if they are interested in submitting a response to this requirement.

Sincerely,

CRAIG DEATRICK
Contracting Officer

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SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER PR15885043			PAGE 1 OF 3 of 42		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER 19FR6326Q0063	6. SOLICITATION ISSUE DATE 4/14/2026	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME Barbara Bolognani		b. TELEPHONE NUMBER (No collect calls) +33 1 4312 2476
9. ISSUED BY Contracting Office U.S. Embassy France 2 avenue Gabriel 75008 Paris France			10. THIS ACQUISITION IS ☒ UNRESTRICTED OR ☐ SET ASIDE: _____ % FOR: ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): _____ SIZE STANDARD: _____		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700) ☐	
15. DELIVER TO CODE _____		16. ADMINISTERED BY CODE _____			
17a. CONTRACTOR/ OFFEROR CODE _____ FACILITY CODE _____		18a. PAYMENT WILL BE MADE BY U.S. Embassy France FMC Voucher / DBO 2 avenue Gabriel, 75382 Paris Cedex 08			
TELEPHONE NUMBER ☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER		18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES Logistics Support Services for one base year and four one-year options. <i>(Use Reverse and/or Attach Additional Sheets as Necessary)</i>	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
25. ACCOUNTING AND APPROPRIATION DATA		26. TOTAL AWARD AMOUNT (For Government Use Only)			
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 62.212-6 ARE ATTACHED. ADDENDA		☒ ARE ☐ ARE NOT ATTACHED			
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA		☐ ARE ☐ ARE NOT ATTACHED			
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED		☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (Type or print)	31c. DATE SIGNED		

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT
REPRESENTATIVE

32c. DATE

32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT
REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER

34. VOUCHER NUMBER

35. AMOUNT VERIFIED
CORRECT FOR

36. PAYMENT

37. CHECK NUMBER

☐ PARTIAL ☐ FINAL

☐ COMPLETE ☐ PARTIAL ☐ FINAL

STOCK RECORD (S/R)

40. PAID BY

38. S/R ACCOUNT NUMBER

39. S/R VOUCHER NUMBER

42a. RECEIVED BY *(Print)*

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT

41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER

41c. DATE

42b. RECEIVED AT *(Location)*

42c. DATE RECEIVED *(MM/DD/YYYY)* 42d. TOTAL CONTAINERS

STANDARD FORM 1449 (REV. 11/2021) BACK

SECTION 1 – SCHEDULE

CONTINUATION TO SF-1449
RFQ NUMBER 19FR6326Q0063
PRICES, BLOCK 23

JAMES ZADROGA 9/11 VICTIMS HEALTH AND COMPENSATION ACT OF 2010 NOTICE:
UNLESS A WAIVER OR EXCEPTION APPLIES, PAYMENTS SUBSEQUENT TO THIS PROCUREMENT ARE SUBJECT TO AN
EXCISE TAX OF 2% PURSUANT TO 26 U.S.C. 5000C

1.1 PERFORMANCE WORK STATEMENT

- A. The purpose of this firm fixed price purchase order is to for Logistical Support Services to the U.S. Mission in France in accordance with Attachment A.
- B. The contract will be for a one-year period from the date of the contract award, with four one-year options.

II. PRICING

The Contractor shall provide the services described below for the period of the contract, starting on the date of award for one base year and two option years. The fixed unit prices estimated quantities are as shown below.

The Contractor shall furnish to the Government, when and if ordered, the services as specified in this contract.

OFFERS AND PAYMENT IN EUROS OR US DOLLARS. U.S. firms are eligible to be paid in U.S. dollars. U.S. firms desiring to be paid in U.S. dollars should submit their offers in U.S. dollars. A U.S. firm is defined as a company that operates as a corporation incorporated under the laws of a state within the United States.

The rates below shall include all direct and indirect costs, insurance (see FAR 52.228-4 and 52.228-5), overhead, and profit. The prices include all expenses and materials required to complete the work.

Base Period: The Contractor shall provide the services shown below for the period of the contract, starting on the date stated in the Notice to Proceed and on the task order for a period of 12 months. The fixed unit prices, estimated quantities, and ceiling for each category are.

Base Year: Twelve (12) Months from **September 1, 2026, to August 31, 2027.**

PRICING SPREADSHEET					
Contract Line Item Number (CLIN)	Description Of Services	Estimated Quantity per year	Volume in Cubic Meter processed per Technician	Price Per Volume Excl. VAT in Euros	Total Firm-Fixed Price Excl. VAT in Euros
0001	Moving services including the use of a box van of about 20 m3 including driver / mover	60	5*		
0002	Moving services including the use of a box van of about 20 m3 including driver / mover	80	10*		
0003	Moving services including the use of a box van of about 20 m3 including driver / mover	150	1.5		
0004	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	30	5*		
0005	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	20	10*		
0006	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	100	1.5		
0007	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	5*		
0008	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	10*		
0009	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	10	1.5		
0010	Rental of outside moving lift operated by specialist	10	Half day		
0011	Rental of outside moving lift operated by specialist	5	Full day		
0012	Moving services	150	5*		
0013	Moving services	250	10*		
0014	Moving services	200	1.5		
0015	Moving services manually and by stairs	50	5*		
0016	Parking Fees	25	Day		
0017	Blankets	100	Unit		
0018	Pallets	50	Unit		
0019	Wrapping for pallets	25	Unit		
0020	Bubble wrap	100	Unit		
Total amount excl. VAT					
VAT					
Total amount incl. VAT					
TOTAL ESTIMATED AMOUNT FOR TWELVE MONTHS INCL. VAT _____					

First Option Year:

The prices for the first option year of the contract are:

Option Term: Twelve (12) Months from **September 1, 2027, to August 31, 2028.**

PRICING SPREADSHEET					
Contract Line Item Number (CLIN)	Description Of Services	Estimated Quantity per year	Volume in Cubic Meter processed per Technician	Price Per Volume Excl. VAT in Euros	Total Firm-Fixed Price Excl. VAT in Euros
0001	Moving services including the use of a box van of about 20 m3 including driver / mover	60	5*		
0002	Moving services including the use of a box van of about 20 m3 including driver / mover	80	10*		
0003	Moving services including the use of a box van of about 20 m3 including driver / mover	150	1.5		
0004	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	30	5*		
0005	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	20	10*		
0006	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	100	1.5		
0007	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	5*		
0008	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	10*		
0009	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	10	1.5		
0010	Rental of outside moving lift operated by specialist	10	Half day		
0011	Rental of outside moving lift operated by specialist	5	Full day		
0012	Moving services	150	5*		
0013	Moving services	250	10*		
0014	Moving services	200	1.5		
0015	Moving services manually and by stairs	50	5*		
0016	Parking Fees	25	Day		
0017	Blankets	100	Unit		
0018	Pallets	50	Unit		
0019	Wrapping for pallets	25	Unit		
0020	Bubble wrap	100	Unit		
Total amount excl. VAT					
VAT					
Total amount incl. VAT					
TOTAL ESTIMATED AMOUNT FOR TWELVE MONTHS INCL. VAT _____					

Second Option Year:

The prices for the second option year of the contract are:

Option Term: Twelve (12) Months from **September 1, 2028, to August 31, 2029.**

PRICING SPREADSHEET					
Contract Line Item Number (CLIN)	Description Of Services	Estimated Quantity per year	Volume in Cubic Meter processed per Technician	Price Per Volume Excl. VAT in Euros	Total Firm-Fixed Price Excl. VAT in Euros
0001	Moving services including the use of a box van of about 20 m3 including driver / mover	60	5*		
0002	Moving services including the use of a box van of about 20 m3 including driver / mover	80	10*		
0003	Moving services including the use of a box van of about 20 m3 including driver / mover	150	1.5		
0004	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	30	5*		
0005	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	20	10*		
0006	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	100	1.5		
0007	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	5*		
0008	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	10*		
0009	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	10	1.5		
0010	Rental of outside moving lift operated by specialist	10	Half day		
0011	Rental of outside moving lift operated by specialist	5	Full day		
0012	Moving services	150	5*		
0013	Moving services	250	10*		
0014	Moving services	200	1.5		
0015	Moving services manually and by stairs	50	5*		
0016	Parking Fees	25	Day		
0017	Blankets	100	Unit		
0018	Pallets	50	Unit		
0019	Wrapping for pallets	25	Unit		
0020	Bubble wrap	100	Unit		
Total amount excl. VAT					
VAT					
Total amount incl. VAT					
TOTAL ESTIMATED AMOUNT FOR TWELVE MONTHS INCL. VAT _____					

Third Option Year:

The prices for the third option year of the contract are:

Option Term: Twelve (12) Months from **September 1, 2029, to August 31, 2030.**

PRICING SPREADSHEET					
Contract Line Item Number (CLIN)	Description Of Services	Estimated Quantity per year	Volume in Cubic Meter processed per Technician	Price Per Volume Excl. VAT in Euros	Total Firm-Fixed Price Excl. VAT in Euros
0001	Moving services including the use of a box van of about 20 m3 including driver / mover	60	5*		
0002	Moving services including the use of a box van of about 20 m3 including driver / mover	80	10*		
0003	Moving services including the use of a box van of about 20 m3 including driver / mover	150	1.5		
0004	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	30	5*		
0005	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	20	10*		
0006	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	100	1.5		
0007	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	5*		
0008	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	10*		
0009	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	10	1.5		
0010	Rental of outside moving lift operated by specialist	10	Half day		
0011	Rental of outside moving lift operated by specialist	5	Full day		
0012	Moving services	150	5*		
0013	Moving services	250	10*		
0014	Moving services	200	1.5		
0015	Moving services manually and by stairs	50	5*		
0016	Parking Fees	25	Day		
0017	Blankets	100	Unit		
0018	Pallets	50	Unit		
0019	Wrapping for pallets	25	Unit		
0020	Bubble wrap	100	Unit		
Total amount excl. VAT					
VAT					
Total amount incl. VAT					
TOTAL ESTIMATED AMOUNT FOR TWELVE MONTHS INCL. VAT _____					

Fourth Option Year:

The prices for the fourth option year of the contract are:

Option Term: Twelve (12) Months from **September 1, 2030, to August 31, 2031.**

PRICING SPREADSHEET					
Contract Line Item Number (CLIN)	Description Of Services	Estimated Quantity per year	Volume in Cubic Meter processed per Technician	Price Per Volume Excl. VAT in Euros	Total Firm-Fixed Price Excl. VAT in Euros
0001	Moving services including the use of a box van of about 20 m3 including driver / mover	60	5*		
0002	Moving services including the use of a box van of about 20 m3 including driver / mover	80	10*		
0003	Moving services including the use of a box van of about 20 m3 including driver / mover	150	1.5		
0004	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	30	5*		
0005	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	20	10*		
0006	Moving services including the use of a heavy weight truck of about 30 m3 including driver / mover	100	1.5		
0007	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	5*		
0008	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	2	10*		
0009	Moving services including the use of a heavy weight truck of about 50 m3 including driver / mover	10	1.5		
0010	Rental of outside moving lift operated by specialist	10	Half day		
0011	Rental of outside moving lift operated by specialist	5	Full day		
0012	Moving services	150	5*		
0013	Moving services	250	10*		
0014	Moving services	200	1.5		
0015	Moving services manually and by stairs	50	5*		
0016	Parking Fees	25	Day		
0017	Blankets	100	Unit		
0018	Pallets	50	Unit		
0019	Wrapping for pallets	25	Unit		
0020	Bubble wrap	100	Unit		
Total amount excl. VAT					
VAT					
Total amount incl. VAT					
TOTAL ESTIMATED AMOUNT FOR TWELVE MONTHS INCL. VAT _____					

Grand Total:

Base Year Total incl. VAT	_____ €
First Option Year Total incl. VAT	_____ €
Second Option Year Total incl. VAT	_____ €
Third Option Year Total incl. VAT	_____ €
Fourth Option Year Total incl. VAT	_____ €
GRAND TOTAL incl. the base and option years incl. VAT	_____ €

III. VALUE ADDED TAX

Value Added Tax (VAT) is not included in the CLIN rates. Instead, it will be priced as a separate Line Item in the contract and on Invoices. Local law dictates the portion of the contract price that is subject to VAT; this percentage is multiplied only against that portion. It is reflected for each performance period. The VAT applicable to this contract is 20%.

IV. MINIMUM AND MAXIMUM AMOUNTS

During this contract period, the Government shall place orders totaling a minimum of 300.00 € incl. VAT. This reflects the contract minimum for this period of performance. The amount of all orders shall not exceed 330,000.00 € incl. VAT yearly. This reflects the contract maximum for this period of performance.

CONTINUATION TO SF-1449,
RFQ NUMBER 19FR6326Q0063
SCHEDULE OF SUPPLIES/SERVICES, BLOCK 20
DESCRIPTION/SPECIFICATIONS/WORK STATEMENT

1. WORK REQUIREMENTS

1.1 General

The purpose of this indefinite delivery, indefinite quantity contract is to provide a variety of logistical support services to the U.S. Embassy in Paris. The Contractor shall furnish all managerial, administrative, technicians, materials and transportation that are necessary to accomplish all work as required by this contract. Contractor employees shall be on site only for performance of contractual duties. The U.S. Government requires a professional contractor compliant with all local French regulations including safety and environmental regulations, and as such, the contractor shall be ISO 14001 certified. Performance requirements for required work are described below.

1.2 Personnel

The Contractor shall provide a qualified work force capable of providing the services specified in this contract.

1.3 General Requirements

1.3.1 Definitions

"General Instructions" means those instructions, directives and guidelines that apply to all warehouse support service personnel.

"Client" means all United States mission personnel for whom the required services are to be rendered.

"COR" means the Contracting Officer's Representative, appointed in accordance with Section G of this contract.

"Government" means the Government of the United States of America unless specifically stated otherwise.

"Ordering Officer" means the Contracting Officer of the U.S. Post.

"Services" means the services performed, workmanship, and material furnished or utilized in the performance of the services.

"Work Order" means a task or work instructions given to the contracted work force with a specific timeline for completion. These are issued daily and indicate the routine actions that are expected of the contractor per the contract.

"GSO" means the General Services Office.

"Calendar Day" means the twenty-four hour period from midnight to midnight. Saturdays, Sundays and all holidays are considered calendar days.

1.3.2. General Instructions

The Contractor shall prepare general instructions for the work force. The Contractor shall provide drafts to the Contracting Officer's Representative (COR) for review within thirty days after award of the contract. The COR must approve these general instructions before issuance.

1.4 Duties and responsibilities

1.4.1 These services shall support special events at the Post. Services may occur outside normal working hours (08:00 – 18:00). The Contracting Officer shall order these services as needed by issuing written task orders. This work shall be performed by trained professionals. The Contracting Officer may require the Contractor to provide the services with 48 hours advance notice. In emergency situations, the Contracting Officer may order temporary services orally and with less advance notice. Such orders will be confirmed in writing the following workday.

1.4.2 The Contractor shall include in its next regular invoices details of the services and, if applicable, optional materials provided and requested. The Contractor shall also include a copy of the task order requesting the services or at least indicate the task order number on the invoice.

2. TYPES OF SERVICES

2.1 Included

The Contractor shall provide moving, assembly, and event preparation services for the offices and residences of the US Embassy in Paris, France. The work will be carried out within the Ile de France region (primarily Paris and the close suburbs). Approximately two hundred and fifty residences and four office buildings are located primarily in the eight, sixteenth and seventeenth arrondissements of Paris as well as the suburbs of Neuilly and Boulogne. The contractor shall maintain a base of operations within forty kilometers of the Chancery building in the Paris eight arrondissement.

Logistical Support Services shall include the following:

a) The Contractor shall furnish all vehicles, licensed drivers, and additional moving services technicians as requested by the US Embassy. Each vehicle shall be equipped with at least one pallet jack and two dollies. Workers will be requested for volumes of services for up to the maximum number of volumes prescribed in the contract. Drivers are expected to do all the lifting and manual work listed in the requirements. Drivers and Moving Services Technicians shall assist with deliveries and movement of appliances, furniture, or supplies to residences and offices; the tracking of movements with documents, and scanners; the assembly of furniture; the set-up of equipment and material for events; stocking and placing items in storage. The Contractor shall provide all necessary small supplies necessary to perform the services (such as tape, corners, scissors...) at no additional cost to the U.S. Embassy Paris.

All goods transported shall be packed and handled in such a way as to guarantee their integrity and avoid any damage.

The embassy's teams shall specify to the Contractor prior to furnishing services, when necessary, any particular requirement for the marking of certain goods at no additional cost to the Embassy.

b) The contractor shall remove and destroy the trash after the services are rendered at no additional cost to the Government.

c) Requirements of all drivers and additional moving services technicians include:

1. Each shall be qualified and able to assist in the movement of large and heavy property up to 105 kilos (the maximum weight authorized by law for moving services technicians).

For requests for technician(s) for assembling furniture requiring a minimum number of assembling tools (about five), the Embassy will not pay for the use of a vehicle.

2. Each shall possess and wear proper hard-toed safety shoes.
3. Each shall wear clothing and safety gear appropriate for the work described. Work can often include moving dusty or dirty machines. Workers may be exposed to cat or dog hair.
4. Each shall be able to work in teams to move appliances, furniture, and supplies. Candidates must be able to move heavy items in teams up or down stairs when a lift is not possible.
5. Each shall be able to use handling materials/equipment to safely move and shall be responsible for the correct and safe utilization, safekeeping and return of such equipment.
6. For access to facilities, each technician shall ensure they have their ID card on their person every day.
7. The ability to work independently on small deliveries, interact with limited customers and contacts, and report to the team leader accordingly.
8. The ability to compare tags to tracking documentation, make notations of differences, and create lists of items. The ability to use a scanner if asked.
9. Good knowledge of Paris area and streets to know alternate routes should primary routes be impassable or otherwise not the best alternative at any given time. Must be able to use contractor provided GPS to confirm addresses.
10. Must speak French well. Must know enough English for basic client interaction.

d) Each driver and additional moving services technician shall be familiar with the safe working procedures of their trade and shall continuously maintain and ensure:

1. Their own safety.
2. The safety of their working colleagues and those around them.
3. The safety and care of the items moved and physical spaces in which they will work.
4. That they will follow all safety rules regarding both the movement of items and the internal security rules of the Embassy as will be described on their first working day (for example, strict rules of accessing spaces).

e) The Contractor shall provide two-way communication equipment and GPS equipment such as cellular phones which shall be always available for use by the driver during the ordered performance of services.

f) Vehicles shall meet the following minimum requirements:

1. Each vehicle shall be clean and in good working order and with enough fuel to fill out the mission (it is the responsibility of the Contractor to refill the vehicles with fuel or provide the means to do so to their employee when necessary).
2. Each vehicle shall possess at least one pallet jack, two dollies, and five blankets for the purpose of moving items.
3. Each vehicle shall possess proper anchoring gear, so items do not move or shift during transit.
4. Each shall possess a small tool kit consisting of tape measure, screw drivers, hammer, and tape.
5. Three types of vehicles or box vans shall be provided as needed under this contract. The smallest shall be 14m³, and two larger vehicles of 20m³ and 30m³ shall be equipped with rear lifts.

g) To facilitate security process requirements, the vendor shall provide the vehicle information, name(s) and copy of I.D. card(s) no later than 24 hours before the commencement of the temporary worker.

1. Due to security requirements, last minute changes are not allowed.
2. To avoid security issues due to unplanned absences, it is recommended that the Contractor routinely provide information for alternate vehicles / moving services technicians.

h) The Contractor shall be responsible for requests to the Prefecture to block a street when it is made at least 20 days before the move.

i) The Contractor shall send invoices at least 10 days after the service has been provided in accordance with the conditions set forth in article *G.2 SUBMISSION OF INVOICES AND PAYMENT* below.

The Contractor shall provide the following units of service as follows:

- a) Moving services in units of 5 m3 and 10 m3 with additional volume units of 1.5 m3 with box van of about 14 cubic meters with driver/moving services technician.
- b) Moving services in units of 5 m3 and 10 m3 with additional volume units of 1.5 m3 with box van of about 20 cubic meters with rear tail lift with driver/moving services technician.
- c) Moving services in units of 5 m3 and 10 m3 with additional volume units of 1.5 m3 with heavy weight truck of about 30 cubic meters with rear tail lift with driver/moving services technician.
- d) Moving services in units of 5 m3 and 10 m3 with additional volume units of 1.5 m3 with heavy weight truck of about 50 cubic meters with rear tail lift with driver/moving services technician.
- e) Half-and-full day rental of an outside moving lift operated by specialist.
- f) moving services in units of 5 m3 and 10 m3 with additional volume units of 1.5 m3 for extra volume.
- g) Moving Services (manually using stairs) in units of 5 m3.
- h) Parking fees for deliveries in Paris (receipts with the date, time and location shall be provided with the invoice for as justification).
- i) Optional: Supply of additional blankets, pallets and wrapping for pallets in units of 300 meter each and bubble wrap in units of 100 meter each.

2.2 Not included

The present contract does not include the transport of heavy, oversized, or fragile loads requiring specific means not provided for in the price list or the technical specifications.

The carrying of manual loads is limited to 105 kg and under the conditions imposed by the French labor code. Any change in French regulations in this area will automatically apply to this contract.

QUALITY ASSURANCE AND SURVEILLANCE PLAN (QASP)

This plan provides an effective method to promote satisfactory contractor performance. The QASP provides a method for the Contracting Officer's Representative (COR) to monitor Contractor performance, advise the Contractor of unsatisfactory performance, and notify the Contracting Officer of continued unsatisfactory performance. The Contractor, not the Government, is responsible for management and quality control to meet the terms of the contract. The role of the Government is to monitor quality to ensure that contract standards are achieved.

Performance Objective	Scope of Work Paragraphs	Performance Threshold
<u>Services.</u> Performs all services set forth in the scope of work.	See pages 12 to 15	All required services are performed, and no more than one (1) customer complaint is received per month.

1. SURVEILLANCE. The COR will receive and document all complaints from Government personnel regarding the services provided. If appropriate, the COR will send the complaints to the Contractor for corrective action.
2. STANDARD. The performance standard is that the Government receives no more than one (1) customer complaint per month. The COR shall notify the Contracting Officer of the complaints so that the Contracting Officer may take appropriate action to enforce the inspection clause ([FAR 52.212.4](#), Contract Terms and Conditions - Commercial Products and Commercial Services (NOV 2023), if any of the services exceed the standard.
3. PROCEDURES.
 - (a) If any Government personnel observe unacceptable services, either incomplete work or required services not being performed they should immediately contact the COR.
 - (b) The COR will complete appropriate documentation to record the complaint.
 - (c) If the COR determines the complaint is invalid, the COR will advise the complainant. The COR will retain the annotated copy of the written complaint for his/her files.
 - (d) If the COR determines the complaint is valid, the COR will inform the Contractor and give the Contractor additional time to correct the defect, if additional time is available. The COR shall determine how much time is reasonable.
 - (e) The COR shall, as a minimum, orally notify the Contractor of any valid complaints.
 - (f) If the Contractor disagrees with the complaint after investigation of the site and challenges the validity of the complaint, the Contractor will notify the COR. The COR will review the matter to determine the validity of the complaint.
 - (g) The COR will consider complaints as resolved unless notified otherwise by the complainant.
 - (h) Repeat customer complaints are not permitted for any services. If a repeat customer complaint is received for the same deficiency during the service period, the COR will contact the Contracting Officer for appropriate action under the Inspection clause.

SECTION 2 – CONTRACT CLAUSES

52.212-4 TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIAL ITEMS **(DEVIATION JAN 2026)**

(a) *Definitions.* The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice.* The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity.* The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to

infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment*—

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act ([31 U.S.C. 3903](#)) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by FAR part 33 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

- (1) The schedule of supplies/services;
- (2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;
- (3) Other contract clauses incorporated in the solicitation or contract;
- (4) Addenda to this solicitation or contract;
- (5) Solicitation provisions incorporated in the solicitation;
- (6) Other paragraphs of this clause;
- (7) Other documents, exhibits, and attachments; and
- (8) The specification.

(s) *Unauthorized obligations.*

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record.* This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

FAR 52.212-5 (RESERVED)

52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS (AUG 2025)

(a) *Definitions.* As used in this clause—

Foreign person means any person other than a United States person.

United States person, as defined in [26 U.S.C. 7701\(a\)\(30\)](#), means—

- (1) A citizen or resident of the United States;
- (2) A domestic partnership;
- (3) A domestic corporation;
- (4) Any estate (other than a foreign estate, within the meaning of [26 U.S.C. 7701\(a\)\(31\)](#)); and
- (5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements [26 U.S.C. 5000C](#) and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) (1) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract throughout the period in which this status is applicable. The excise tax withholding is applied at the payment level, not at the contract level. The Contractor should revise each IRS Form W-14 submission to reflect the exemption (if any) that applies to that particular invoice, such as a different exemption applying. In the absence of a completed IRS Form W-14 accompanying a payment request, the default withholding percentage is 2 percent for the section 5000C withholding for that payment request. Information about IRS Form W-14 and its separate instructions is available via the internet at www.irs.gov/w14.

(2) If the Contractor is a foreign person and has indicated in its offer in the provision [52.229-11](#), Tax on Certain Foreign Procurements—Notice and Representation, that it is fully exempt from the withholding, and certified the full exemption on the IRS Form W-14, and if that full exemption no longer applies due to a change in circumstances during the performance of the contract that causes the Contractor to become subject to the withholding for the 2 percent excise tax then the Contractor shall—

(i) Notify the Contracting Officer within 30 days of a change in circumstances that causes the Contractor to be subject to the excise tax withholding under [26 U.S.C. 5000C](#); and

(ii) Comply with paragraph (c)(1) of this clause.

(d) The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption. If the Contractor enters a ratio in Line 12 of the IRS Form W-14, the result of Line 11 divided by Line 10, the Government will withhold from each payment an amount equal to 2 percent multiplied by the contract ratio. If the Contractor marks box 9 of the IRS Form W-14 (rather than completes Lines 10 through 12), the Contractor must identify and enter the specific exempt and nonexempt amounts in Line 15 of the IRS Form W-14; the Government will then withhold 2 percent only from the nonexempt amount. See the IRS Form W-14 and its instructions.

(e) Exemptions from the withholding under this clause are described at 26 CFR 1.5000C-1(d)(5) through (7). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the [26 U.S.C. 5000C](#) tax are adjudicated by the IRS as the [26 U.S.C. 5000C](#) tax is a tax matter, not a contract issue.

(f) Taxes imposed under [26 U.S.C. 5000C](#) may not be—

- (1) Included in the contract price; nor
- (2) Reimbursed.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of clause)

ADDENDUM TO CONTRACT CLAUSES
FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at: Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATIONS (FAR) CLAUSES
ARE INCORPORATED BY REFERENCE:

CLAUSE TITLE AND DATE

52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE (DEVIATION JAN 2026)
52.222-19	CHILD LABOR-COOPERATION WITH AUTHORITIES AND REMEDIES (DEVIATION FEB. 2026)
52.225-14	INCONSISTENCY BETWEEN ENGLISH VERSION AND TRANSLATION OF CONTRACT (FEB 2000)
52.229-6	TAXES - FOREIGN FIXED PRICE CONTRACTS (FEB 2013)
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS (JUNE 2013)
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
52.240-91	SECURITY PROHIBITIONS AND EXCLUSIONS (DEVIATION JAN 2026)
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION JAN 2026)

THE FOLLOWING FAR CLAUSES ARE PROVIDED IN FULL TEXT:

52.216-18 ORDERING (AUG 2020)

- (a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from the September 1, 2026, through August 31, 2031 of each executed contractual year.
- (b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.
- (c) A delivery order or task order is considered “issued” when –
- (1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;
 - (2) If sent by fax, the Government transmits the order to the Contractor’s fax number; or
 - (3) If sent electronically, the Government either –

- (i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or
- (ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 ORDER LIMITATIONS (OCT 1995)

(a) Minimum order. When the Government requires supplies or services covered by this contract in an amount of less than EUR 300.00 (three hundred euros), the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) Maximum order. The Contractor is not obligated to honor--

(1) Any order for a single item in excess of than EUR 330,000.00 (Three hundred thirty thousand euros);

(2) Any order for a combination of items in excess of than EUR 330,000.00 (Three hundred thirty thousand euros); or

(3) A series of orders from the same ordering office within 2 days that together call for quantities exceeding the limitation in subparagraph (1) or (2) above.

(c) If this is a requirements contract (i.e., includes the Requirement clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) above.

(d) Notwithstanding paragraphs (b) and (c) above, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 2 days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 INDEFINITE QUANTITY (DEVIATION FEB. 2026)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be

exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after the end of the contract period.

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within the performance period of the contract.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the performance period of the contract or within 30 days after funds for the option year become available, whichever is later.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five years.

(End of clause)

52.232-19 AVAILABILITY OF FUNDS FOR THE NEXT FISCAL YEAR (APR 1984)

Funds are not presently available for performance under this contract beyond September 30 of the current calendar year. The Government's obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond September 30 of the current calendar year, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

THE FOLLOWING DOSAR CLAUSES ARE PROVIDED IN FULL TEXT:

CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email.

Contractor personnel must take the following actions to identify themselves as non-federal employees:

- 1) Use an email signature block that shows name, the office being supported and company affiliation (e.g. “John Smith, Office of Human Resources, ACME Corporation Support Contractor”);
- 2) Clearly identify themselves and their contractor affiliation in meetings;
- 3) Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and
- 3) Contractor personnel may not utilize Department of State logos or indicia on business cards.

(End of clause)

652.215-70 EXAMINATION OF RECORDS

(a) With respect to matters related to this contract or a subcontract hereunder, the Department of State Office of the Inspector General, or an authorized representative, shall have upon request:

(1) Complete, prompt, and free access to all Contractor and Subcontractor files (in any format), documents, records, data, premises, and employees, except as limited by law; and

(2) The right to interview any current Contractor and Subcontractor personnel, individually and directly, with respect to such matters.

(b) This clause may not be construed to require the contractor or any subcontractor to create or maintain any record that the contractor or subcontractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(c) The Contractor shall insert a clause containing all the terms of this clause, including this [paragraph \(c\)](#), in all subcontracts under this contract other than acquisitions described in Federal Acquisition Regulation 15.209(b)(1).

652.216-70 ORDERING - INDEFINITE-DELIVERY CONTRACT (APR 2004)

The Government shall use one of the following forms to issue orders under this contract:

(a) The Optional Form 347, *Order for Supplies or Services*, and Optional Form 348, *Order for Supplies or Services Schedule - Continuation*; or,

(b) The DS-2076, *Purchase Order, Receiving Report and Voucher*, and DS-2077, *Continuation Sheet*.

(End of clause)

652.225-71 SECTION 8(A) OF THE EXPORT ADMINISTRATION ACT OF 1979, AS AMENDED (AUG 1999)

(a) Section 8(a) of the U.S. Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)), prohibits compliance by U.S. persons with any boycott fostered by a foreign country against a country which is friendly to the United States and which is not itself the object of any form of boycott pursuant to United States law or regulation. The Boycott of Israel by Arab League countries is such a boycott, and therefore, the following actions, if taken with intent to comply with, further, or support the Arab League Boycott of Israel, are prohibited activities under the Export Administration Act:

(1) Refusing, or requiring any U.S. person to refuse to do business with or in Israel, with any Israeli business concern, or with any national or resident of Israel, or with any other person, pursuant to an agreement of, or a request from or on behalf of a boycotting country;

(2) Refusing, or requiring any U.S. person to refuse to employ or otherwise discriminating against any person on the basis of race, religion, sex, or national origin of that person or of any owner, officer, director, or employee of such person;

(3) Furnishing information with respect to the race, religion, or national origin of any U.S. person or of any owner, officer, director, or employee of such U.S. person;

(4) Furnishing information about whether any person has, has had, or proposes to have any business relationship (including a relationship by way of sale, purchase, legal or commercial representation, shipping or other transport, insurance, investment, or supply) with or in the State of Israel, with any business concern organized under the laws of the State of Israel, with any Israeli national or resident, or with any person which is known or believed to be restricted from having any business relationship with or in Israel;

(5) Furnishing information about whether any person is a member of, has made contributions to, or is otherwise associated with or involved in the activities of any charitable or fraternal organization which supports the State of Israel; and,

(6) Paying, honoring, confirming, or otherwise implementing a letter of credit which contains any condition or requirement against doing business with the State of Israel.

(b) Under Section 8(a), the following types of activities are not forbidden ``compliance with the boycott," and are therefore exempted from Section 8(a)'s prohibitions listed in paragraphs (a)(1)-(6) above:

(1) Complying or agreeing to comply with requirements:

(i) Prohibiting the import of goods or services from Israel or goods produced or services provided by any business concern organized under the laws of Israel or by nationals or residents of Israel; or,

(ii) Prohibiting the shipment of goods to Israel on a carrier of Israel, or by a route other than that prescribed by the boycotting country or the recipient of the shipment;

(2) Complying or agreeing to comply with import and shipping document requirements with respect to the country of origin, the name of the carrier and route of shipment, the name of the supplier of the shipment or the name of the provider of other services, except that no information knowingly furnished or conveyed in response to such requirements may be stated in negative, blacklisting, or similar exclusionary terms, other than with respect to carriers or route of shipments as may be permitted by such regulations in order to comply with

precautionary requirements protecting against war risks and confiscation;

(3) Complying or agreeing to comply in the normal course of business with the unilateral and specific selection by a boycotting country, or national or resident thereof, of carriers, insurance, suppliers of services to be performed within the boycotting country or specific goods which, in the normal course of business, are identifiable by source when imported into the boycotting country;

(4) Complying or agreeing to comply with the export requirements of the boycotting country relating to shipments or transshipments of exports to Israel, to any business concern of or organized under the laws of Israel, or to any national or resident of Israel;

(5) Compliance by an individual or agreement by an individual to comply with the immigration or passport requirements of any country with respect to such individual or any member of such individual's family or with requests for information regarding requirements of employment of such individual within the boycotting country; and,

(6) Compliance by a U.S. person resident in a foreign country or agreement by such person to comply with the laws of that country with respect to his or her activities exclusively therein, and such regulations may contain exceptions for such resident complying with the laws or regulations of that foreign country governing imports into such country of trademarked, trade named, or similarly specifically identifiable products, or components of products for his or her own use, including the performance of contractual services within that country, as may be defined by such regulations.

(End of clause)

652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS WITHIN THE UNITED STATES (JUL 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

(End of clause)

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm-fixed price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices by email to ParisFMCdbo1@state.gov and copy the COR. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

PROGRESSIVE PARTIAL PAYMENTS ARE AUTHORIZED.

The billing address is the following:

U.S. Embassy
FMC Voucher / DBO
2 avenue Gabriel
75382 Paris Cedex 08

The Contractor shall show taxes (VAT) as a separate item on invoices submitted for payment.

(c) Contractor Remittance Address. The Government will make payment to the Contractor's address stated on the cover page of this contract, unless a separate remittance address is shown below:

(End of clause)

652.237-72 OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE LEAVE (FEB 2015)

(a) The Department of State observes the following days as holidays:

New Year's Day
Martin Luther King's Birthday
Washington's Birthday
Memorial Day
Juneteenth
Independence Day
Labor Day
Columbus Day
Veterans Day
Thanksgiving Day
Christmas Day

Any other day designated by Federal law, Executive Order, or Presidential Proclamation.

(b) When New Year's Day, Independence Day, Veterans Day or Christmas Day falls on a Sunday, the following Monday is observed; if it falls on Saturday the preceding Friday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract. If the contractor's personnel work on a holiday, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, unless authorized pursuant to an overtime clause elsewhere in this contract.

(c) When the Department of State grants administrative leave to its Government employees, assigned contractor personnel in Government facilities shall also be dismissed. However, the contractor agrees to continue to provide sufficient personnel to perform round-the-clock requirements of critical tasks already in operation or scheduled, and shall be guided by the instructions issued by the contracting officer or his/her duly authorized representative.

(d) For fixed-price contracts, if services are not required or provided because the building is closed due to inclement weather, unanticipated holidays declared by the President, failure of Congress to appropriate funds, or similar reasons, deductions will be computed as follows:

(1) The deduction rate in dollars per day will be equal to the per month contract price divided by 21 days per month.

(2) The deduction rate in dollars per day will be multiplied by the number of days services are not required or provided.

If services are provided for portions of days, appropriate adjustment will be made by the contracting officer to ensure that the contractor is compensated for services provided.

(e) If administrative leave is granted to contractor personnel as a result of conditions stipulated in any "Excusable Delays" clause of this contract, it will be without loss to the contractor. The cost of salaries and wages to the contractor for the period of any such excused absence shall be a reimbursable item of direct cost hereunder for employees whose regular time is normally charged, and a reimbursable item of indirect cost for employees whose time is normally charged indirectly in accordance with the contractors accounting policy.

(End of clause)

DOSAR 652.239-801 **DISCLOSURE OF AI USE CLAUSE (DEVIATION) (SEP 2025)**

(a) *Definitions.* As used in this clause-

Artificial Intelligence (AI): The term "artificial intelligence" has the meaning provided in Section 238(g) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019.

- i. This definition of AI encompasses, but is not limited to, the AI technical subfields of machine learning (including deep learning as well as supervised, unsupervised, and semi-supervised approaches), reinforcement learning, transfer learning, and generative AI.
- ii. This definition of AI does not include robotic process automation or other systems whose behavior is defined only by human-defined rules or that learn solely by repeating an observed practice exactly as it was conducted.
- iii. For this definition, no system should be considered too simple to qualify as covered AI due to a lack of technical complexity (e.g., the smaller number of parameters in a model, the type of model, or the amount of data used for training purposes).
- iv. This definition includes systems that are fully autonomous, partially autonomous, and not autonomous, and it includes systems that operate both with and without human oversight.

(b) **Disclosure of AI Use in Contract Performance.** When the Contractor or any of its subcontractors, vendors, or agents intends to incorporate AI into the performance of the contract, the Contractor shall provide the following disclosures in its offer:

Disclose the intended use of AI and provide a description of the AI system or capability and its purpose within the contract scope; specify whether the system

was developed internally, acquired from a third party, or is publicly/commercially available; indicate if the AI system will process PII or be used in ways that may affect privacy, civil rights, safety, or public interaction; detail the governance, oversight, and human-in-the-loop mechanisms to be applied; and describe any applicable testing, evaluation, risk management, or bias mitigation measures that have been or will be implemented.

These disclosures must be updated promptly to the Contracting Officer during the period of performance upon any new use of AI or significant material change to the existing AI capability, its functionality, its use case, or its data inputs/outputs during the life of the contract.

The Government reserves the right to review the proposed AI use, request additional safeguards or controls, and/or disallow its use if it is deemed inconsistent with agency policy, legal requirements, or federal AI governance standards.

(End of Clause)

652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) The COR for this contract is the **Property and Warehouse Manager**.

(End of clause)

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

(1) That is has obtained authorization to operate and do business in the country or countries in which this contract will be performed;

(2) That is has obtained all necessary licenses and permits required to perform this contract; and,

(3) That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a) of this clause.

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

SECTION 3 – SOLICITATION PROVISIONS

52.212-1 INSTRUCTIONS TO OFFERORS -- COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION NOV 2025) IS INCORPORATED BY REFERENCE (SEE SF-1449, BLOCK 27A)

ADDENDUM TO 52.212-1

A. Summary of Instructions. Each offer must consist of the following:

A.1. A completed solicitation, in which the SF-1449 cover page (blocks 12, 17, 19-24, and 30 as appropriate), and Section 1 has been filled out.

The Offeror shall include Defense Base Act (DBA) insurance premium costs covering employees. The offeror may obtain DBA insurance directly from any Department of Labor approved providers at the DOL website at <http://www.dol.gov/owcp/dlhwc/lscarrier.htm>]

A.2. Information demonstrating the offeror's/quoter's ability to perform, including:

(1) Name of a Project Manager (or other liaison to the U.S. Embassy/Consulate) who can effectively fulfill the contract work on site; and who would have direct responsibility for this contract.

(2) Evidence that the offeror/quoter operates an established business with a permanent address and telephone listing.

(3) The offeror shall provide proof of SAM registration to include the SAM UEI number.

4. List of **five** clients over the past **three (3)** years, demonstrating prior experience with relevant past performance information and references (provide dates of contracts, places of performance, value of contracts, contact names, telephone and fax numbers and email addresses). If the offeror has not performed comparable services in **France**, then the offeror shall provide its international experience. Offerors are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the offeror's:

- Quality of services provided under the contract;
- Compliance with contract terms and conditions;
- Effectiveness of management;
- Willingness to cooperate with and assist the customer in routine matters, and when confronted by unexpected difficulties; and
- Business integrity / business conduct.

The Government will use past performance information primarily to assess an offeror's capability to meet the solicitation performance requirements, including the relevance and successful performance of the offeror's work experience. The Government may also use this data to evaluate the credibility of the offeror's proposal.

In addition, the Contracting Officer may use past performance information in making a determination of responsibility.

5. Evidence that the offeror/quoter can provide the necessary personnel, equipment, and financial resources needed to perform the work;
6. The offeror shall address its plan to obtain all licenses and permits required by local law (see DOSAR 652.242-73 in Section 2). If offeror already possesses the locally required licenses and permits, a copy shall be provided. This includes copies of any relevant certificates of insurance(s).
7. The offeror's strategic plan for implementation and execution of the services to include but not limited to:
 - a) A work plan taking into account all work elements in the scope of services.
 - b) Identify types and quantities of equipment, supplies and materials required for performance of services under this contract. Identify if the offeror already possesses the listed items and their condition for suitability and if not already possessed or inadequate for use how and when the items will be obtained. Describe their base of operations and confirm that it is located within a 40-kilometer radius from the Paris eight arrondissement.
 - c) Plan for ensuring quality of services including but not limited to contract administration, oversight, resolution of issues/complaints and methods of gathering customer feedback.
 - d) A copy of the certificate of insurance.
 - e) A safety and health protection plan.
 - f) A copy of the ISO 14001 compliancy certificate.
8. Subcontracting plan - If a subcontractor(s) is to be used, the Contractor shall provide a complete subcontracting plan including, but not limited to:
 - a. Sub-contractor qualifications as required in section A.2 (1; 2; 4; 6; 7) including: evidence of an established business, prior similar experience, evidence of financial and personnel resources, Licenses and permits required by French law and tax regularity certificate.
 - b. Evidence of an existing partnership with the sub-contractor(s) for a minimum of three (3) years
 - c. Past performance demonstrating a good business relationship with the sub-contractor(s), including payment of the subcontractor(s) in due time.

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at Acquisition.gov this address is subject to change.

If the Federal Acquisition Regulation (FAR) is not available at the location indicated above, use the Department of State Acquisition website at e-CFR to see the links to the FAR. You may also use an Internet “search engine” (for example, Google, Yahoo or Excite) to obtain the latest location of the most current FAR.

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION PROVISIONS ARE INCORPORATED BY REFERENCE:

PROVISION TITLE AND DATE

52.204-7 SYSTEM FOR AWARD MANAGEMENT (DEVIATION JAN 2026)

52.214-34 SUBMISSION OF OFFERS IN THE ENGLISH LANGUAGE (APR 1991)

THE FOLLOWING DOSAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

652.206-70 ADVOCATE FOR COMPETITION/OMBUDSMAN (FEB 2015)

(a) The Department of State’s Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential offerors are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

(1) For solicitations issued by the Office of Acquisition Management (A/GA/AMD) or a Regional Procurement Support Office, the A/GA/AMD Advocate for Competition, at AQMCompetitionAdvocate@state.gov.

(2) For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State’s Acquisition Ombudsman has been appointed to hear concerns from potential offerors and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. When requested and appropriate, the ombudsman will maintain strict confidentiality as to the source of the concern. The ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of formal contract disputes. Interested parties are invited to contact the contracting activity ombudsman, **Mikael McCowan, at +33143122009**

mccowanmc@state.gov. For an American Embassy or overseas post, refer to the numbers below for the Department Acquisition Ombudsman. Concerns, issues, disagreements, and recommendations which cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of Global Acquisitions (A/GA), Suite 1060, SA-15, Washington, DC 20520.
(End of provision)

SECTION 4 – EVALUATION FACTORS

- Award will be made to the lowest priced, acceptable, responsible offeror. The quoter shall submit a completed solicitation, including Sections 1 and 5.
- The Government reserves the right to reject proposals that are unreasonably low or high in price.
- The lowest price will be determined by multiplying the offered prices times the estimated quantities in “Prices - Continuation of SF-1449, block 23”, and arriving at a grand total, including all options.
- The Government will determine acceptability by assessing the offeror's compliance with the terms of the RFQ **to include the technical information required by Section 3.**
- The Government will determine contractor responsibility by analyzing whether the apparent successful offeror complies with the requirements of FAR 9.1, including:
 - Adequate financial resources or the ability to obtain them;
 - Ability to comply with the required performance period, taking into consideration all existing commercial and governmental business commitments;
 - Satisfactory record of integrity and business ethics;
 - Necessary organization, experience, and skills or the ability to obtain them;
 - Necessary equipment and facilities or the ability to obtain them; and
 - Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

ADDENDUM TO EVALUATION FACTORS
FAR AND DOSAR PROVISION(S) NOT PRESCRIBED IN PART 12

THE FOLLOWING FAR PROVISION(S) IS/ARE PROVIDED IN FULL TEXT:

52.216-27 SINGLE OR MULTIPLE AWARDS (OCT 1995).

The Government may elect to award a single delivery order contract or task order contract or to award multiple delivery order contracts or task order contracts for the same or similar supplies or services to two or more sources under this solicitation.

52.217-5 EVALUATION OF OPTIONS (DEVIATION JAN 2026)

The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

52.225-17 EVALUATION OF FOREIGN CURRENCY OFFERS (FEB 2000)

If the Government receives offers in more than one currency, the Government will evaluate offers by converting the foreign currency to United States currency using the exchange rate used by the Embassy in effect as follows:

- (a) For acquisitions conducted using sealed bidding procedures, on the date of bid opening.
- (b) For acquisitions conducted using negotiation procedures—
 - (1) On the date specified for receipt of offers, if award is based on initial offers;
otherwise
 - (2) On the date specified for receipt of proposal revisions.

SECTION 5 – REPRESENTATIONS AND CERTIFICATIONS

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS
AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021) (RESERVED)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES REPRESENTATION
(OCT 2020) (RESERVED)

52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL
PRODUCTS AND COMMERCIAL SERVICES (MAY 2024) (RESERVED)

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS – NOTICE AND REPRESENTATION
(JUN 2020)

(a) *Definitions.* As used in this provision—

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means—

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if—

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal

Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that—

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Offeror indicates “is” in paragraph (d)(1) of this provision, then the Offeror represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption [*Offeror shall select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects “is” in paragraph (d)(1) and “partial or no exemption” in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. **For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.**

(End of provision)

THE FOLLOWING DOSAR PROVISION IS PROVIDED IN FULL TEXT:

652.225-70 ARAB LEAGUE BOYCOTT OF ISRAEL (AUG 1999)

(a) Definitions. As used in this provision:

Foreign person means any person other than a United States person as defined below.

United States person means any United States resident or national (other than an individual resident outside the United States and employed by other than a United States person), any domestic concern (including any permanent domestic establishment of any foreign concern), and any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern which is controlled in fact by such domestic concern, as provided under the Export Administration Act of 1979, as amended.

(b) Certification. By submitting this offer, the offeror certifies that it is not:

(1) Taking or knowingly agreeing to take any action, with respect to the boycott of Israel by Arab League countries, which Section 8(a) of the Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)) prohibits a United States person from taking; or,

(2) Discriminating in the award of subcontracts on the basis of religion.

(End of Provision)

ADDENDUM TO SOLICITATION PROVISIONS
FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

THE FOLLOWING FEDERAL ACQUISITION REGULATION SOLICITATION
PROVISIONS ARE INCORPORATED BY REFERENCE:

52.225-25 PROHIBITION ON CONTRACTING WITH ENTITIES ENGAGING IN CERTAIN
ACTIVITIES OR TRANSACTIONS RELATING TO IRAN—REPRESENTATION AND
CERTIFICATIONS (JUN 2020) (RESERVED)